



Sponsor: People's Republic of China, Islamic Republic of Iran

Signatories: Republic of Hungary, Ukraine, Federative Republic of Brazil, Russian Federation, Arab Republic of Egypt, Socialist Republic of Vietnam, United States of America, Federal Republic of Germany, Republic of India

The Security Council,

Guided by the purposes and principles enshrined in the Charter of the United Nations,

Reaffirming its commitment to respecting the sovereignty, territorial integrity, economic and political independence of all States,

Alarmed by the escalation of the conflicts and issues in the Middle East and North Africa,

Recognizing the potential catastrophic consequences of nuclear accidents,

Recognizing the need for the involved parties to follow the principles enshrined in the Chapter VI of the UN charter,

Emphasizing the importance of international cooperation in nuclear safety,

Stressing that the United Nations should ensure a more conducive, coordinated and coherent approach to strengthening the ability of special political mission to deliver and administer their mandate and should contribute to ensuring enhanced transparency, accountability, coherence, technicality and effectiveness of special political missions,

1. *Underlines* respect for sovereignty, guarantees of independence and territorial integrity of all countries, the primacy of international law without double standards;
2. *Condemns* the actions taken by certain nations which unilaterally amount to a threat to international peace and security;

3. *Underlines* respect for the security interests of individual countries, rejection of the strengthening and expansion of military blocs;
4. *Urges* member states to take all necessary measures to ensure the effective protection of civilians and prisoners of war in accordance with the principles of international humanitarian law, including by,
 - a) Preventing acts of violence, torture, and other cruel, inhuman, or degrading treatment against civilians and prisoners of war,
 - b) Investigating allegations of such acts and bringing perpetrators to justice,
 - c) Providing adequate humanitarian assistance to civilians and prisoners of war,
 - d) Respecting the principles of distinction, proportionality, and military necessity in the conduct of hostilities;
5. *Encourages* the sharing of information and best practices among Member States regarding nuclear safety, including lessons learned from accidents and incidents;
6. *Urges* member states to develop and implement comprehensive emergency preparedness and response plans, including regular testing and international cooperation;
7. *Calls upon* the parties in conflict to withdraw their troops from the Strait of Hormuz in recognition of the need for pacific settlement of disputes;
8. *Calls upon* member states to provide immediate and sustained financial and technical assistance for the post-war reconstruction of Countries affected by conflict;
9. *Considers* the Peacebuilding, Relief, and Development framework effectively requires a systematic and coordinated approach that integrates relief, development, and peacebuilding efforts;
10. *Urges* the international community to provide support and assistance to enable States to fulfil their responsibilities regarding the protection of refugees and other persons protected under international humanitarian law;
11. *Calls upon* member states to initiate political will and political courage to materialise the International Criminal Tribunal of Jerusalem (ICTJ), exercising the Article 29 of the UN charter to hold the perpetrators accountable;
12. *Condemns* the Politicization of Regional issues and Human rights;
13. *Decides* to remain seized on the matter.

ANNEXURE A

International Criminal Tribunal of Jerusalem(ICTJ)

Article 1 - **Mandate**

Competence of the International Tribunal The International Tribunal shall have the power to prosecute persons responsible for serious violations of international humanitarian law committed in the territory of since 1948 in accordance with the provisions of the present Statute.

Article 2 - **Composition**

The International Tribunal shall consist of the following organs: (a) the Chambers, comprising three Trial Chambers and an Appeals Chamber; (b) the Prosecutor; and (c) a Registry, servicing both the Chambers and the Prosecutor.

Article 3 -**Grave breaches of the Geneva Conventions of 1949**

The International Tribunal shall have the power to prosecute persons committing or ordering to be committed grave breaches of the Geneva Conventions of 12 August 1949, namely the following acts against persons or property protected under the provisions of the relevant Geneva Convention:

- (a) wilful killing;
- (b) torture or inhuman treatment, including biological experiments;
- (c) wilfully causing great suffering or serious injury to body or health;
- (d) extensive destruction and appropriation of property, not justified by military necessity and carried out unlawfully and wantonly;
- (e) compelling a prisoner of war or a civilian to serve in the forces of a hostile power;
- (f) wilfully depriving a prisoner of war or a civilian of the rights of fair and regular trial;
- (g) unlawful deportation or transfer or unlawful confinement of a civilian;
- (h) taking civilians as hostages.

Article 4 Genocide

1. The International Tribunal shall have the power to prosecute persons committing genocide as defined in paragraph 2 of this article or of committing any of the other acts enumerated in paragraph 3 of this article.

2. Genocide means any of the following acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such:

(a) killing members of the group; (b) causing serious bodily or mental harm to members of the group; (c) deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part; (d) imposing measures intended to prevent births within the group; (e) forcibly transferring children of the group to another group.

3. The following acts shall be punishable: (a) genocide; (b) conspiracy to commit genocide; (c) direct and public incitement to commit genocide; (d) attempt to commit genocide; (e) complicity in genocide.

Article 5 Crimes against humanity

The International Tribunal shall have the power to prosecute persons responsible for the following crimes when committed in armed conflict, whether international or internal in character, and directed against any civilian population: (a) murder; (b) extermination; (c) enslavement; (d) deportation; (e) imprisonment; (f) torture; (g) rape; (h) persecutions on political, racial and religious grounds; (i) other inhumane acts.

Article 6 Qualifications of judges

The permanent and ad litem judges shall be persons of high moral character, impartiality and integrity who possess the qualifications required in their respective countries for appointment to the highest judicial offices. In the overall composition of the Chambers and sections of the Trial Chambers, due account shall be taken of the experience of the judges in criminal law, international law, including international humanitarian law and human rights law.

Article 7 Territorial and temporal jurisdiction

The territorial jurisdiction of the International Tribunal shall extend to the territory of the State of Israel and Palestine, including its land surface, airspace and territorial waters. The temporal jurisdiction of the International Tribunal shall extend to a period beginning on 1st January 2028.

Article 8 Rules of procedure and evidence

The judges of the International Tribunal shall adopt rules of procedure and evidence for the conduct of the pre-trial phase of the proceedings, trials and appeals, the admission of evidence, the protection of victims and witnesses and other appropriate matters.

Article 9 Investigation and preparation of indictment

The Prosecutor shall initiate investigations ex-officio or on the basis of information obtained from any source, particularly from Governments, United Nations organs, intergovernmental and nongovernmental organisations. The Prosecutor shall assess the information received or obtained and decide whether there is sufficient basis to proceed.

The Prosecutor shall have the power to question suspects, victims and witnesses, to collect evidence and to conduct on-site investigations. In carrying out these tasks, the Prosecutor may, as appropriate, seek the assistance of the State authorities concerned.

Article 10 Protection of victims and witnesses

The International Tribunal shall provide in its rules of procedure and evidence for the protection of victims and witnesses. Such protection measures shall include, but shall not be limited to, the conduct of in camera proceedings and the protection of the victim's identity.

Article 11 Judgement

The Trial Chambers shall pronounce judgements and impose sentences and penalties on persons convicted of serious violations of international humanitarian law

The judgement shall be rendered by a majority of the judges of the Trial Chamber, and shall be delivered by the Trial Chamber in public. It shall be accompanied by a reasoned opinion in writing, to which separate or dissenting opinions may be appended.

Article 12 Enforcement of sentences

Imprisonment shall be served in a State designated by the International Tribunal from a list of States which have indicated to the Security Council their willingness to accept convicted persons. Such imprisonment shall be in accordance with the applicable law of the State concerned, subject to the supervision of the International Tribunal.

Article 13 Seat of the International Tribunal

The International Tribunal shall have its seat at Oslo.

Article 14 Expenses of the International Tribunal

The expenses of the International Tribunal shall be borne by the regular budget of the United Nations in accordance with Article 17 of the Charter of the United Nations.

Article 15 Working languages

The working languages of the International Tribunal shall be English, French, Arabic, Hebrew and Mandarin.

Article 16 Annual report

The President of the International Tribunal shall submit an annual report of the International Tribunal to the Security Council and to the General Assembly.